Checklist for PSEA-Sensitive Recruitment, Contracting and Performance Management

- □ Include a sentence in job announcements to notify candidates that background and reference checks will be conducted and ethics is part of annual performance appraisals
- □ Require applicants to self-declare prior issues of sexual or other misconduct, termination of past employment, criminal records, and concerns registered with government authorities regarding contact with children, and to consent to the disclosure of any such information by their former employers during verification of references
- □ Conduct background checks (e.g. police records, Google searches) and contact references to vet for former misconduct in accordance with local laws regarding employment, privacy and data protection
- □ Ensure gender-balanced and gender-neutral interview panels during hiring processes and conduct gender neutral interviews[1].
    - This includes for instance having a standardized interview process, making sure that each candidate, regardless of his gender or sexual orientation, is being asked the same questions and comparing them equally.
- □ Ask candidates interview questions about ethics and ethical dilemmas (e.g. What's your idea of an ethical organization? Tell me about a time when you faced an ethical challenge.)
- □ Require candidates to review and sign the code of conduct before being offered a contract
- □ Include a PSEA clause[2] in employment contracts, including when subcontracting
    - The PSEA clause must be included in all employment contracts of the organisation. If the organisation has different contracts for different types of employment (staff, volunteers, interns, consultants, etc.), please ensure to add a PSEA clause in all of them.
    - The PSEA clause should not only mention the zero tolerance policy of the organisation. It is instrumental to ensure the clause lays out the actual obligations of personnel linked to PSEA. These include, without being limited to:
        - obligation to refrain from committing SEA,
        - obligation to report any situation of SEA
        - obligation to take part in audits/investigations as required and protection against retaliation.
- □ Outline disciplinary measures in the event of proven SEA allegations (e.g. termination of contract)

[1] Also see UNICEF Gender Balance Strategies and Tools, accessed July 8, 2019

[2]

- □ Include training in PSEA as part of onboarding process and provide refresher courses at regular intervals during employment tenure
- □ Include adherence to code of conduct (e.g. participation in PSEA trainings) in performance appraisals of staff
- □ Include in the performance appraisals of senior staff their effectiveness in creating and maintaining an environment which prevents and responds to SEA
- □ Freeze professional advancement/recruitment opportunities of individuals under investigation
- □ In cases of confirmed misconduct, take robust disciplinary action (e.g. dismissal, suspension, written censure or other administrative/corrective measures) and, where this involves possible criminal conduct, consider reporting the incident to local law enforcement authorities[3]
- □ Maintain an internal database documenting any disciplinary measures on personnel, including dismissals, to avoid rehiring them at a later point in time
- □ Systematically share relevant information of personnel known to have committed SEA with other potential employers during background checks, to the extent legally possible.

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